

1.	22CV0981	KELLY KOHLSTEDT VS. WALMART INC
MOTION TO COMPEL NEUROPSYCHOLOGICAL EXAMINATION OF PLAINTIFF, MOTION TO REOPEN DISCOVERY		

Motion to Compel Neuropsychological Examination of Plaintiff

A defendant generally may obtain a mental examination of a plaintiff if the plaintiff has placed his or her mental condition in controversy. (§ 2032.020, subd. (a).) To obtain discovery by a mental examination, the defendant must seek leave of court, with the motion specifying “the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination.” (§ 2032.310, subds. (a) & (b).) The court may order the mental examination only on a showing of good cause. (§ 2032.320, subd. (a).) Its order granting the examination must specify certain details of the examination, including “the person or persons who may perform the examination, as well as the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination.” (Id., subd. (d).) Both the examiner and examinee “have the right to record a mental examination by audio technology.” (§ 2032.530.)

These parties do not dispute the propriety of the request by Defendant for Plaintiff to complete the exam other than those objections addressed below. Rather, the issue surrounds the parameters of the exam and what will be discoverable from the exam, i.e. testing questions and answers and other material. Thus, the court grants the request to compel the neuropsychological exam with parameters discussed below. The court rejects the arguments of the Plaintiff that the IME should be prohibited as the discovery cutoff has passed. The delay resulted from attempts to negotiate the terms under which testing would be completed. Plaintiff made demands regarding the parameters of the examination which were a significant factor in those delays. Additionally, the court will not deny the request based on the recording demand or parameters. The statute requires leave of the court before such an examination is undertaken to allow the court to set the parameters for the examination. The main issues of dispute regarding the parameters are:

Recording:

The code entitles audio recording of the examination. The court will order the examination to be recorded via audio technology only as required. The written portions of the exam shall not be audio recorded other than the oral directions if any. If there is an issue with the Plaintiff’s ability to complete the written portion of the test in writing that issue was not raised. Were that to occur the provider is ordered to record the testing and maintain said recording pending further order of the court.

Testing materials:

Both sides cite *Randy's Trucking, Inc. v. Super Ct.* (2023) 91 Cal.App.5th 818 for their position regarding testing materials. That court stated:

The appellate court nevertheless recognized that “[w]hile there is no express statutory authority” for the plaintiff’s position, “neither is there statutory authority precluding a trial court, in its discretion, from ordering the disclosure of the written test questions and answers.” (Carpenter, *supra*, 141 Cal.App.4th at p. 271, citing *Golfland Entertainment Centers, Inc. v. Superior Court* (2003) 108 Cal.App.4th 739, 747 (Golfland).) The plaintiff argued the discretion to disclose the materials should be exercised because he could not meaningfully exercise his rights to take discovery of and cross-examine the defendant’s expert witnesses without the test questions and answers on which the experts’ opinions are based, citing section 2034.410 and Evidence Code section 721, subdivision (a). (Carpenter, at pp. 271–272.) The plaintiff further argued the disclosure of these materials would protect against abuse and subsequent disputes over what occurred. (*Id.* At p. 272.)

The court has discretion to order discovery of testing materials, raw data, etc pursuant to the *Randy's Trucking* case. The court is not required to do so nor does the *Randy's Trucking* case stand for that position. The court will not require that raw testing data, questions or answers to any psychological testing be provided to counsel or any non-licensed professional entitled to maintain such data pending further order of the court. Absent a showing that the specific facts and circumstances of this matter necessitate such an order, the court declines to require such disclosure. All testing data is to be discovered to Plaintiff’s expert for review including but not limited to any psychological testing questions and answers and any raw testing data.

Motion to Reopen Discovery

The court has discretion to reopen discovery pursuant to CCP § 2024.050(a). As the court has granted the request to compel the neuropsychological examination, the court will reopen discovery for the purpose of completing the exam. As discussed above, the parties engaged in negotiations for months to resolve the parameters of the examination. While a motion to compel the court to resolve the issues sooner would have been prudent, parties engaged in good faith efforts to meet and confer, and the court will not deny the request due to delay based on such efforts.

TENTATIVE RULING #1: THE MOTION TO COMPEL NEUROPSYCHOLOGICAL EVALUATION IS GRANTED. THE MOTION TO REOPEN DISCOVERY IS ALSO GRANTED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.

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RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

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LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.

2.	25CV1485	GR TRUCKING, LLC vs. AM DEVELOPMENT INC
MOTION TO BE RELIEVED AS COUNSEL		

Counsel for AM Development, Inc. and Adam Murray move the Court for an order to be relieved as counsel pursuant to Code of Civil Procedure § 284(2) and California Rules of Court, Rule 3.1362.

A declaration on Judicial Council Form MC-052 accompanies the motion, as required by California Rules of Court, Rule 3.1362, stating that the clients have failed to cooperate with counsel regarding outstanding balances for legal fees and costs.

Code of Civil Procedure § 284(2) and California Rules of Court, Rule 3.1362 allow an attorney to withdraw after notice to the client. Proof of service of the motion on the Defendants at their last known address and on counsel for Plaintiff was filed on April 1, 2026.

A Settlement Conference is currently scheduled for July 15, 2026, Issues Conference is set for September 4, 2026, Trial Conference is set for September 11, 2026, and Trial is set for September 15, 2026. All dates are listed in the proposed Order as required by California Rules of Court, Rule 3.1362(e).

TENTATIVE RULING #2: THE MOTION IS GRANTED. COUNSEL IS DIRECTED TO SERVE A COPY OF THE SIGNED ORDER (FORM MC-053) ON THE CLIENT AND ALL PARTIES THAT HAVE APPEARED IN THE CASE IN ACCORDANCE WITH CALIFORNIA RULES OF COURT, RULE 3.1362(e).

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

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3.	25CV1486	CRETE CRUSH LLC VS. AM DEVELOPMENT, INC ET AL
MOTION TO BE RELIEVED		

Counsel for AM Development, Inc. and Adam Murray move the Court for an order to be relieved as counsel pursuant to Code of Civil Procedure § 284(2) and California Rules of Court, Rule 3.1362.

A declaration on Judicial Council Form MC-052 accompanies the motion, as required by California Rules of Court, Rule 3.1362, stating that the clients have failed to cooperate with counsel regarding outstanding balances for legal fees and costs.

Code of Civil Procedure § 284(2) and California Rules of Court, Rule 3.1362 allow an attorney to withdraw after notice to the client. Proof of service of the motion on the Defendants at their last known address and on counsel for Plaintiff was filed on April 1, 2026.

A Case Management Conference is currently scheduled for August 11, 2026. The court will need an amended order in compliance with California Rules of Court, Rule 3.1362(e).

TENTATIVE RULING #3: ABSENT OBJECTION, THE MOTION IS GRANTED. COUNSEL IS DIRECTED TO SERVE A COPY OF THE SIGNED ORDER (FORM MC-053) ON THE CLIENT AND ALL PARTIES THAT HAVE APPEARED IN THE CASE IN ACCORDANCE WITH CALIFORNIA RULES OF COURT, RULE 3.1362(e).

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4.	25CV2156	LINKED HOME LOANS, LLC VS. PAULA HARVEY
DEEM REQUESTS FOR ADMISSIONS 1-25 ADMITTED AND SANCTIONS		

Motion to Deem Admitted Matters Specified in Request for Admissions

On December 12, 2025, Plaintiff served a Request for Admissions (RFA”) on Defendant as part of discovery in this lawsuit. Defendant returned responses with a caption from another case on January 15, 2026. Defendant retained counsel who provided revised responses by email on January 16, 2026. Plaintiff did not contact counsel Defendant at any time in any manner other than via email. Plaintiff has filed this motion seeking to have the matters specified in the RFA deemed admitted. Defendant opposes the motion maintaining responses were provided and/or that any defects in the responses be excused on the grounds of inadvertence, mistake and excusable neglect, pursuant to Code of Civil Procedure § 2033.280(a)(2).²

VERIFICATION

As to the verification of the proposed responses, Defendant cites case law holding that “[u]nsworn responses are tantamount to no responses at all. However, the case of *Allen-Pac., Ltd. v. Superior Ct.*, 57 Cal. App. 4th 1546 addressed a discovery response that was unsigned. In *Melendrez v. Superior Ct.*, 215 Cal. App. 4th 1343, (2013) a response on behalf of a corporation was signed by counsel, which did not meet the statutory requirement that the RFA response be signed by an officer or an agent of the corporation. Neither case mandates the rejection of Plaintiff’s personal signature under penalty of perjury on the proposed RFA responses. Plaintiff was pro per when the responses were initially drafted, likely leading to errors in correcting the caption, and can be presumed to have reviewed the responses. The objection to the date of the verification and that it was the same verification is misplaced. There is no basis for the court to conclude the verification is defective because of errors in the caption or that it needed to be resigned for such reason. The court also rejects the method of service as a basis for finding there to be no responses. The Request for Admissions was propounded via email, though they were also mailed. However, Plaintiff claims the date of service as the date of the email to calculate the date responses were due, not the extended date based on mail service. The court also notes there was no meet and confer as required regarding the issue, as email is not sufficient. As Plaintiff has relied on its’ service via email for the basis for its’ claims in this motion, it cannot rely on email service in response as a fatal flaw.

Code of Civil Procedure § 2033.280 addresses the failure to respond to requests for admissions:

If a party to whom requests for admission are directed fails to serve a timely response, the following rules apply:

(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter

4 (commencing with [Section 2018.010](#)). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

(1) The party has subsequently served a response that is in substantial compliance with [Sections 2033.210, 2033.220, and 2033.230](#).

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

(b) The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with [Section 2023.010](#)).

(c) The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with [Section 2033.220](#). It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with [Section 2023.010](#)) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.

The court finds that responses to Plaintiff's Request for Admission were timely and any administrative errors in the document does not require the court to find otherwise. The court denies the motion to deem request for admissions admitted.

As the court has denied the motion any request for sanctions is moot.

TENTATIVE RULING #8: DEFENDANT'S MOTION TO DEEM ADMITTED THE MATTERS SPECIFIED IN THE REQUESTS FOR ADMISSION IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

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5.	PC20200201	JOSEF DULLER ET AL VS GABRIELE MCINNIS ET AL
MOTION FOR NUNC PRO TUNC ENTRY OF JUDGMENT		

Plaintiffs file this motion for nunc pro tunc entry of judgement. They maintain the clerk of the court failed to enter judgement following the court's ruling on October 9, 2025.

A judgment is the final determination of the rights of the parties (Code Civ. Proc., § 577) “ „when it terminates the litigation between the parties on the merits of the case and leaves nothing to be done but to enforce by execution what has been determined.” ” (*Sullivan v. Delta Air Lines, Inc.* (1997) 15 Cal.4th 288, 304, quoting *Doudell v. Shoo* (1911) 159 Cal. 448, 453.) “ „It is not the form of the decree but the substance and effect of the adjudication which is determinative. As a general test, which must be adapted to the particular circumstances of the individual case, it may be said that where no issue is left for future consideration except the fact of compliance or noncompliance with the terms of the first decree, that decree is final, but where anything further in the nature of judicial action on the part of the court is essential to a final determination of the rights of the parties, the decree is interlocutory.” ” (*Griset v. Fair Political Practices Com.* (2001) 25 Cal.4th 688, 698, italics added, quoting *Lyons v. Goss* (1942) 19 Cal.2d 659, 670.)

In this matter, parties agree the court issued its' Ruling on Submitted Matter on October 9, 2025. The ruling adjudicated the merits of the case, made orders awarding damages, and awarded attorney fees. The court left no issue on the merits of the case unresolved. On October 31, 2025, the court responded to Plaintiffs' request for a statement of decision by confirming that the Ruling on Submitted Matter dated October 9, was the FINAL determination and not a tentative ruling and as a result, no statement of decision was required. Both the ruling and response to the request for a statement of decision were served by the court on the parties. As such, the court did enter judgement as required and the motion for nunc pro tunc entry of judgement is denied.

TENTATIVE RULING #5: THE MOTION PRO TUNC ENTRY OF JUDGMENT IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

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6.	23CV1998	Eli Brunius, an individual vs. Michael N. Miller, Jr., an individual
Motion to Dismiss		

Defendants filed this motion to dismiss on March 20, 2026 based on Plaintiff's failure to communicate or respond to any attempted communication since August of 2024. The last communication from Plaintiff was a text message in which her purportedly claimed he had asked his prior counsel to dismiss the action. There has been no further communication with the Plaintiff nor any further filings with the court from Plaintiff. Proof of service of the motion was filed with the court establishing service via mail on March 24, 2026. No opposition has been filed. The court grants the motion to dismiss.

TENTATIVE RULING #6: THE MOTION TO DISMISS IS GRANTED.

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7.	25CV1907	RUTH HAYNES ET AL vs. ASHLEY SPENCER ET AL
MOTION FOR TRIAL PREFERENCE		

Plaintiff filed this motion for trial preference pursuant to CCP § 36 which states

(a) A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings:

(1) The party has a substantial interest in the action as a whole.

(2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.

Defendant's opposition disputes only whether the health of the Plaintiff is such that a preference is necessary to prevent prejudice. The court finds Plaintiff has sufficiently established the health of the Plaintiff requires preference based on the nature of the injury in combination with the age of the Plaintiff.

TENTATIVE RULING #7: APPEARANCES REQUIRED FRIDAY, MAY 29, 2026, AT 8:30 AM IN DEPARTMENT NINE.

8.	24CV1621	WATERMARK ON THE LAKE HOMEOWNERS' ASSOCIATION VS. JUNKO BRADLEY
DEMURRER/MOTION TO DISMISS/MOTION FOR SUMMARY JUDGEMENT		

Defendant files this motion which asserts to be multiple different motions simultaneously. As to any request to dismiss and or demurrer, these issues are either moot by virtue of the court's granting Plaintiff's motion for Summary Judgement or the motions are not available to the party for the purposes of the cross complaint.

SUMMARY JUDGEMENT/SUMMARY ADJUDICATION

"The first step in analyzing a motion for summary judgment is to identify the issues framed by the pleadings. It is these allegations to which the motion must respond by showing there is no factual basis for relief or defense on any theory reasonably contemplated by the opponent's pleading. (Citations omitted.)" (6 Witkin, California Procedure (5th ed. 2008) Proceedings Without Trial, § 212, page 650.)

"For purposes of motions for summary judgment and summary adjudication: (1) A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on that cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto..." (*Code of Civil Procedure*, § 437c(p)(1).)

The moving party bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law. "In moving for summary judgment, a 'plaintiff ... has met' his 'burden of showing that there is no defense to a cause of action if' he 'has proved each element of the cause of action entitling' him 'to judgment on that cause of action.'" (*Law Offices of Dixon R. Howell v. Valley* (2005) 129 Cal.App.4th 1076, 1091-1092.)

The California Practice Guide, Civil Procedure Before Trial cites Nazir v. United Airlines, Inc. (2009) 178 Cal.App.4th 243, for the proposition that the court has the discretion to deny the motion if there remains a triable issue of material fact as to any fact that the moving party contends is a material fact in the separate statement.

“Separate statements are required not to satisfy a sadistic urge to torment lawyers, but rather to afford due process to opposing parties and to permit trial courts to expeditiously review complex motions for [summary adjudication] and summary judgment to determine quickly and efficiently whether material facts are undisputed.” (*United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 335, 282 Cal.Rptr. 368.) The separate statement “provides a convenient and expeditious vehicle permitting the trial court to hone in on the truly disputed facts.” (*Collins v. Hertz Corp.* (2006) 144 Cal.App.4th 64, 74, 50 Cal.Rptr.3d 149.)

The supporting papers shall include a separate statement setting forth plainly and concisely all material facts which the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence. The failure to comply with this requirement of a separate statement may in the court's discretion constitute a sufficient ground for denial of the motion.” (Code of Civil Procedure, § 437c(b)(1).)

In this matter, no code complaint separate statement was provided by the moving party. The documents attached to the motion provided 12 pages of facts which often acknowledge disputes by referring to them as lies by the other party and 82 pages of documents which include correspondence with evidence of the disputes between the parties in which each maintain different versions of the same facts (i.e. whether there was disparate treatment of homeowners as one example).

As the court finds there are multiple material disputes in fact and the separate statement is not compliant with the code as it fails to establish what if any undisputed facts exist, the motion for summary judgement and or summary adjudication is denied.

TENTATIVE RULING #8: MOTION FOR SUMMARY JUDGEMENT AND/OR SUMMARY ADJUDICATION IS DENIED.

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9.	PC20200294	ALL ABOUT EQUINE ANIMAL RESCUE V. ALEXANDER BYRD
DEMURRER		

On the court's own motion, this matter is continued to July 3, 2026 at 8:30am.

TENTATIVE RULING #9: MATTER IS CONTINUED TO JULY 3, 2026 AT 8:30AM

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.

10.	25CV0195	JODY GROVES VS. DIANE GEE ET AL
DEMURRER/REQUEST FOR JUDICIAL NOTICE		

REQUEST FOR JUDICIAL NOTICE:

Defendant requests the court take Judicial notice of 2 documents: the deed of trust and the release of mechanics lien. The court grants the requests.

DEMURRER:

Standard of Review

A demurrer tests the sufficiency of a complaint by raising questions of law. (*Rader Co. v. Stone* (1986) 178 Cal.App.3d 10, 20, 223 Cal.Rptr. 806.) In determining the merits of a demurrer, all material facts pleaded in the complaint and those that arise by reasonable implication, but not conclusions of fact or law, are deemed admitted by the demurring party. (*Moore v. Conliffe, supra*, 7 Cal.4th at p. 638, 29 Cal.Rptr.2d 152, 871 P.2d 204; *Interinsurance Exchange v. Narula, supra*, 33 Cal.App.4th at p. 1143, 39 Cal.Rptr.2d 752.) The complaint must be construed liberally by drawing reasonable inferences from the facts pleaded. (*Flynn v. Higham* (1983) 149 Cal.App.3d 677, 679, 197 Cal.Rptr. 145.)

In addition to the facts actually pleaded, the court considers facts of which it may or must take judicial notice. *Cantu v. Resolution Trust Corp.*, 4 Cal.App.4th 857, 877 (1992).

A demurrer raises only issues of law, not fact, regarding the form and content of the pleadings of the opposing party. Cal. Civ. Pro. §§ 422.10 and 589. It is not the function of the demurrer to challenge the truthfulness of the complaint, instead, for the purposes of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts in the pleading but not contentions, deductions or conclusions of fact or law. *Aubry v. Tri-City Hosp. Dist.*, 2 Cal. 4th 962, 966-967 (1992); *Serrano v. Priest*, 5 Cal. 3d 584 (1971); *Adelman v. Associated Int'l Ins. Co.*, 90 Cal. App. 4th 352, 359 (2001). A demurrer can only challenge defects that appear on the face of the pleading and other matters that are judicially noticeable, the challenging party cannot make allegations of fact to the contrary. *Blank v. Kirwan*, 39 Cal. 3d 311, 318 (1985); *Donabedian v. Mercury Ins. Co.*, 116 Cal. App. 4th 968 (2004); *Harboring Villas Homeowners Assn. v. Sup. Ct.*, 63 Cal. App. 4th 426 (1998). For that reason, "[t]he hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of documents whose truthfulness or proper interpretation are disputable." *Fremont Indemnity Co. v. Fremont General Corp.*, 148 Cal. App. 4th 97, 114 (2007).

Failure to plead the ultimate facts supporting a cause of action subjects the complaint to a demurrer. Cal. Civ. Pro. § 430.10(e); *Berger v. Cal. Ins. Guar. Ass'n*, 128 Cal. App. 4th 989, 1006 (2005). "To determine whether a cause of action is stated, the appropriate question is whether, upon a consideration of all the facts alleged, it appears that the plaintiff is entitled to any judicial relief against the defendant, notwithstanding that the facts may not be clearly stated, or may be

intermingled with a statement of other facts irrelevant to the cause of action shown, or although the plaintiff may demand relief to which he is not entitled under the facts alleged.” *Elliot v. City of Pacific Grove*, 54 Cal. App. 3d 53, 56. Otherwise stated, the demurrer is to be overruled if the allegations of the complaint are sufficient to state a cause of action under any legal theory. *Brousseau v. Jarrett*, 73 Cal. App. 3d 864 (1977); see also *Nguyen v. Scott*, 206 Cal. App. 3d 725 (1988). ‘

Plaintiff has not responded to Umpqua Bank’s demurrer motion.

Defendant maintains there is not a cause of action which states a claim as Defendant is not a party to any contract nor has been assigned any rights which create a duty to Plaintiff for purpose of any breach of contract or quantum meruit claim. The court agrees. Defendant has no rights nor has entered into any agreements with Plaintiff. Defendant’s agreement with the homeowners’ functions to secure the loan made to the homeowners for the construction project. It does not provide any rights or obligations to Defendant as it relates to Plaintiff. For those reasons the court will sustain the demurrer as to cause of action 1 and 2.

The cause of action for foreclosure of mechanics lien also fails. Plaintiff has provided no facts to dispute the foreclosure filing is barred. Additionally, Plaintiff having released the lien has the effect of demonstrating the lien is not enforceable and cannot now be foreclosed on.

As Plaintiff has not responded to the demurrer and for the reasons stated, the court will sustain the demurrer without leave to amend.

TENTATIVE RULING #10: DEMURRER IS SUSTAINED WITHOUT LEAVE TO AMANED.

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May 29, 2026
Dept. 9
Tentative Rulings

**CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED.
PARTIES MAY PERSONALLY APPEAR AT THE HEARING.**

May 29, 2026
Dept. 9
Tentative Rulings